

HOUSE No. 3969

The Commonwealth of Massachusetts

PRESENTED BY:

Orlando Ramos and Angelo J. Puppolo, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to urban farmland.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Orlando Ramos</i>	<i>9th Hampden</i>	<i>1/17/2025</i>

HOUSE No. 3969

By Representatives Ramos of Springfield and Puppolo of Springfield, a petition (accompanied by bill, House, No. 3969) of Orlando Ramos relative to urban farmland taxation. Revenue.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to urban farmland.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 61A of the General Laws is hereby amended by inserting after
2 section 1 the following section:-

3 Section 1A. (a) Land shall be deemed to be in urban agricultural use if: (i) the land is
4 primarily and directly used for agricultural or horticultural uses, as those terms are defined in
5 sections 1 and 2; (ii) the land is located in an urban area, as determined by the commissioner of
6 revenue; (iii) the land is less than 5 acres in area; and (iv) the gross sales of agricultural,
7 horticultural or agricultural and horticultural products resulting from such uses together with the
8 amount, if any, payable under a soil conservation or pollution abatement program of the federal
9 government or the commonwealth total not less than \$300 per year or when the use of such land
10 is clearly proven to be for the purpose of achieving an annual total of not less than \$300 from
11 such gross sales and program payments within the normal product development period as
12 determined by the farmland valuation advisory commission established pursuant to section 11.

13 SECTION 2. Section 3 of said chapter 61A, as appearing in the 2022 Official Edition, is
14 hereby amended by inserting, in line 12, after the word “chapter” the following words:- ;
15 provided, that land of less than 5 acres in area shall be deemed to be actively devoted to
16 agricultural or horticultural use if it is deemed in urban agricultural use, as set forth in section
17 1A.

18 SECTION 3. Section 4 of said chapter 61A, as so appearing, is hereby amended by
19 inserting, in line 3, after the word “uses” the following words:- , or the value of land less than 5
20 acres that is actively devoted to urban agricultural use,.